Individual Assignment – Week 5

Binding Rulings & Tariff Classification Analysis

Commodity: Modular Anti-Theft Travel Backpack

Origin: China

Jurisdictions: United States & European Union

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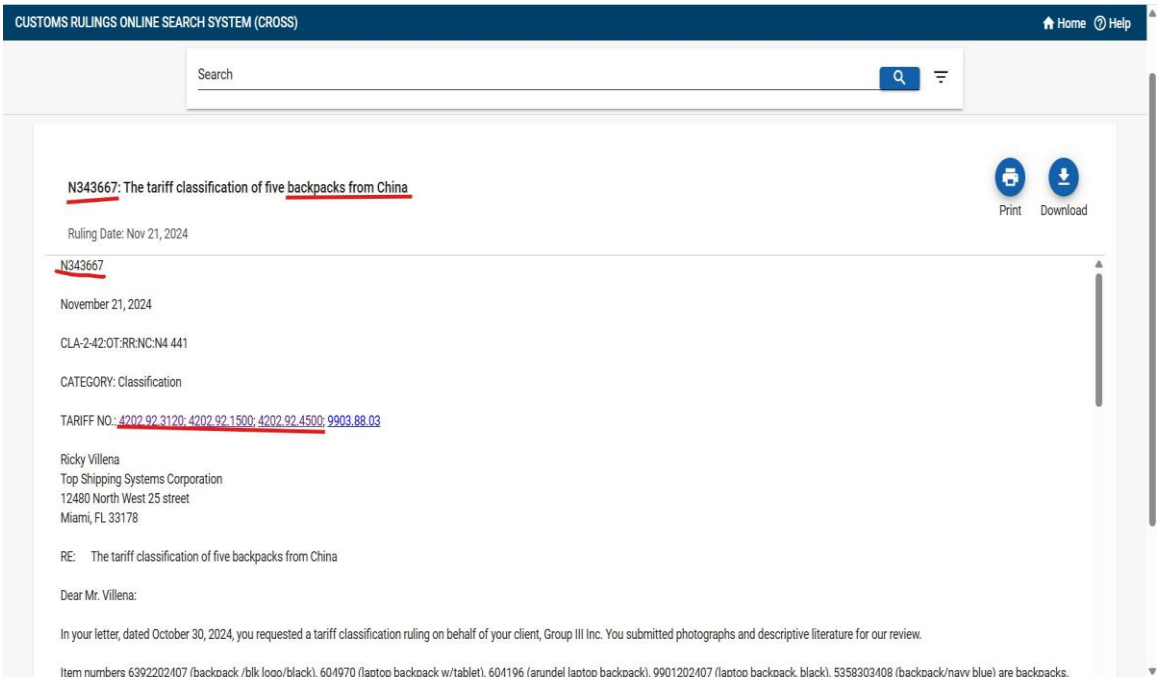
1. U.S. Binding Ruling – CROSS (CBP)

CBP Binding Ruling N343667 (November 21, 2024) was reviewed through the CROSS database. The ruling classifies backpacks from China under subheadings:
4202.92.3120
4202.92.1500
4202.92.4500
depending on the outer surface material.
This confirms that classification under heading 4202.92 is determined primarily by the outer surface composition.

Figure 1 – CBP Ruling N343667 (Header & Tariff Numbers)



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N343667: The tariff classification of five backpacks from China

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Ruling Date: Nov 21, 2024

N343667

November 21, 2024

CLA-2-42:OT:RR:NC:N4 441

CATEGORY: Classification

TARIFF NO.: 4202.92.3120; 4202.92.1500; 4202.92.4500; 9903.88.03

Ricky Villena
Top Shipping Systems Corporation
12480 North West 25 street
Miami, FL 33178

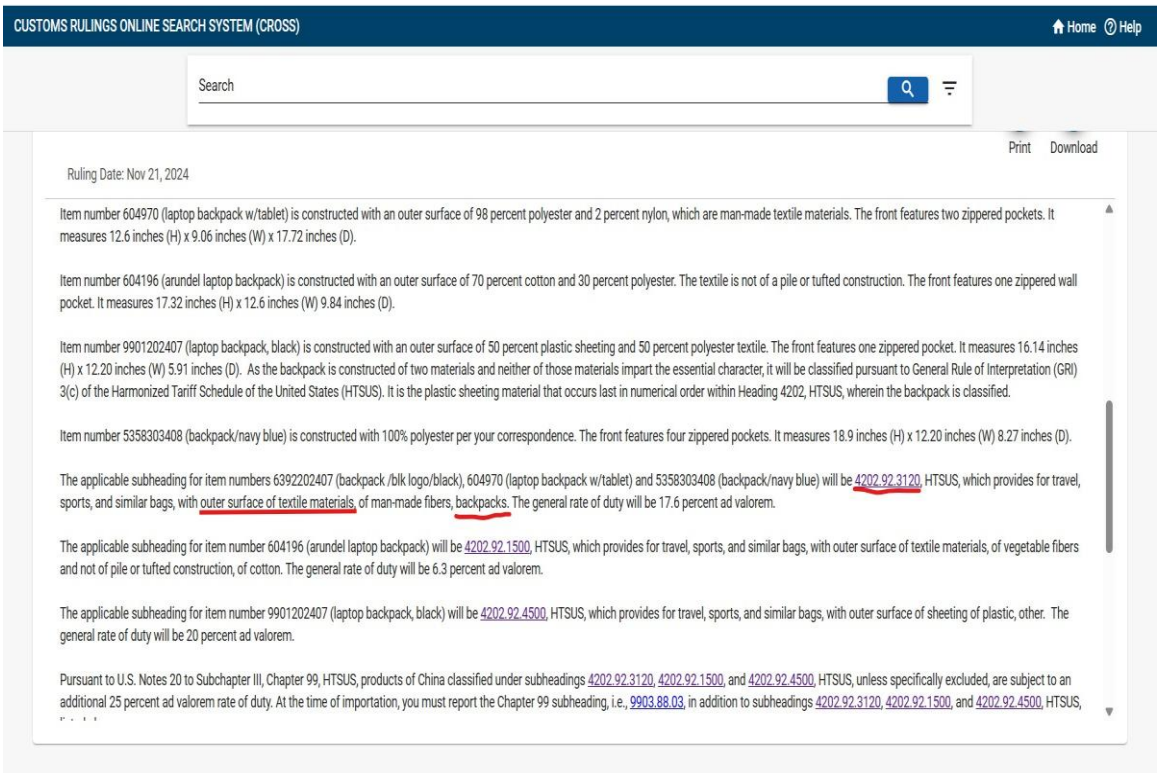
RE: The tariff classification of five backpacks from China

Dear Mr. Villena:

In your letter, dated October 30, 2024, you requested a tariff classification ruling on behalf of your client, Group III Inc. You submitted photographs and descriptive literature for our review.

Item numbers 6392202407 (backpack /blk logo/black), 604970 (laptop backpack w/tablet), 604196 (arundel laptop backpack), 9901202407 (laptop backpack, black), 5358303408 (backpack/navy blue) are backpacks.

Figure 2 – CBP Ruling N343667 (Classification Analysis Section)



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Ruling Date: Nov 21, 2024

Item number 604970 (laptop backpack w/tablet) is constructed with an outer surface of 98 percent polyester and 2 percent nylon, which are man-made textile materials. The front features two zippered pockets. It measures 12.6 inches (H) x 9.06 inches (W) x 17.72 inches (D).

Item number 604196 (arundel laptop backpack) is constructed with an outer surface of 70 percent cotton and 30 percent polyester. The textile is not of a pile or tufted construction. The front features one zippered wall pocket. It measures 17.32 inches (H) x 12.6 inches (W) 9.84 inches (D).

Item number 9901202407 (laptop backpack, black) is constructed with an outer surface of 50 percent plastic sheeting and 50 percent polyester textile. The front features one zippered pocket. It measures 16.14 inches (H) x 12.20 inches (W) 5.91 inches (D). As the backpack is constructed of two materials and neither of those materials impart the essential character, it will be classified pursuant to General Rule of Interpretation (GRI) 3(c) of the Harmonized Tariff Schedule of the United States (HTSUS). It is the plastic sheeting material that occurs last in numerical order within Heading 4202, HTSUS, wherein the backpack is classified.

Item number 5358303408 (backpack/navy blue) is constructed with 100% polyester per your correspondence. The front features four zippered pockets. It measures 18.9 inches (H) x 12.20 inches (W) 8.27 inches (D).

The applicable subheading for item numbers 6392202407 (backpack /blk logo/black), 604970 (laptop backpack w/tablet) and 5358303408 (backpack/navy blue) will be 4202.92.3120, HTSUS, which provides for travel, sports, and similar bags, with outer surface of textile materials, of man-made fibers, backpacks. The general rate of duty will be 17.6 percent ad valorem.

The applicable subheading for item number 604196 (arundel laptop backpack) will be 4202.92.1500, HTSUS, which provides for travel, sports, and similar bags, with outer surface of textile materials, of vegetable fibers and not of pile or tufted construction, of cotton. The general rate of duty will be 6.3 percent ad valorem.

The applicable subheading for item number 9901202407 (laptop backpack, black) will be 4202.92.4500, HTSUS, which provides for travel, sports, and similar bags, with outer surface of sheeting of plastic, other. The general rate of duty will be 20 percent ad valorem.

Pursuant to U.S. Notes 20 to Subchapter III, Chapter 99, HTSUS, products of China classified under subheadings 4202.92.3120, 4202.92.1500, and 4202.92.4500, HTSUS, unless specifically excluded, are subject to an additional 25 percent ad valorem rate of duty. At the time of importation, you must report the Chapter 99 subheading, i.e., 9903.88.03, in addition to subheadings 4202.92.3120, 4202.92.1500, and 4202.92.4500, HTSUS,

2. Essential Character Analysis

Applying the General Rules of Interpretation (GRI):
Under GRI 1, classification is determined by the terms of the headings and relevant section or chapter notes.
Under GRI 6, subheading determination follows the same principles.

The essential character of the product is derived from:
Its primary function as a backpack designed to carry personal effects
Its dominant textile outer surface

Secondary materials such as:
Plastic buckles
Foam padding
Metal zippers

do not alter classification because they are accessory components and do not change the fundamental nature of the product.
Therefore, the appropriate U.S. classification is:
HTSUS 4202.92.3120
Duty rate: 17.6%
(Plus potential Section 301 duties for China-origin goods).

3. EU TARIC / BTI Consideration

The European Commission's TARIC and European Binding Tariff Information (EBTI) databases were consulted to confirm the tariff classification within the European Union. A German Binding Tariff Information decision, reference DEBTI18789/24-1, issued on June 12, 2024 and valid until June 16, 2027, was identified.

Figure 3 – German BTI Decision DEBTI18789/24-1 (Header and CN Code 4202 92 91)

European Commission > Taxation and Customs Union > Databases > European Binding Tariff Information (EBTI) > BTI Details

More information can be found here. Close

BTI Details

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BTI Reference	DEBTI18789/24-1
Issuing country	DE
Start date of validity	17/06/2024
End date of validity	16/06/2027
Nomenclature code	42029291**********

The BTI classifies a backpack with a textile outer surface under Combined Nomenclature code 4202 92 91. The decision explicitly applies General Rule of Interpretation 1 (AV 1) and General Rule of Interpretation 6 (AV 6), as well as Chapter 42 of the Combined Nomenclature. The description confirms that the essential character of the product derives from its function as a backpack and from its textile outer surface. Minor accessories, including zipper components, are considered insignificant and do not alter classification.

Figure 4 – BTI Classification Justification (Application of AV 1 and AV 6)

Nomenclature code	42029291**********
Classification justification	AV 1 / AV 6 ZAnm 1 Kap 42
Language	de
Place of issue	HANOVER
Date of issue	12/06/2024
Name and address	Main Customs Office Hannover, Waterloostraße 5, 30169 Hannover, Germany
Description of goods	Backpack, photo attached, - according to the application details: - - with an outer layer made of textiles, - - with a carrying handle and two adjustable shoulder straps, - - with an inset zippered pocket on the padded back panel, - - with two slip pockets on the front with side zippers; one of which has a carabiner attached to a narrow strap, - - the main compartment has a zipper running along three sides of the upper edge; the upper edge is folded down like a flap and secured by integrated magnetic and buckle closures, - - - lined; Equipped internally with one zippered compartment, three open, padded slip pockets, and a padded laptop compartment; with zippered access at the back; dimensions: approx. 39 cm (width) x 46 cm (height) x 17 cm (depth); with six interchangeable zipper pulls attached to a cord; the zipper pulls are of low quality and considered insignificant in terms of use, they do not alter the nature of the goods and are therefore to be classified as such. "Backpack with textile outer fabric"

BACKPACKS

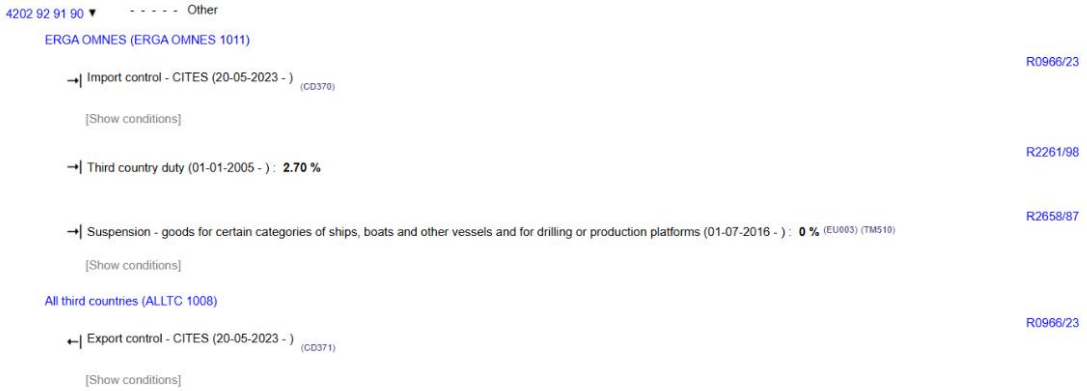
OF TEXTILE MATERIAL

WITH CARRYING HANDLE

This confirms alignment with U.S. tariff logic at the six-digit Harmonized System level (4202.92).

A TARIC consultation for CN code 4202 92 91 with origin China confirms that the applicable third-country duty rate is 2.7 percent ad valorem.

Figure 5 – TARIC Consultation (China – CN 4202 92 91 – 2.7% Duty Rate)



4. Conclusion

Both the U.S. Binding Ruling N343667 and the German BTI decision DEBTI18789/24-1 confirm classification under heading 4202.92 for backpacks with a textile outer surface. The analysis demonstrates proper application of the General Rules of Interpretation and verification through official binding rulings in both jurisdictions.

While classification is harmonized at the six-digit HS level, duty exposure differs significantly. The United States applies a 17.6 percent general duty rate, with possible additional Section 301 duties for Chinese-origin goods, whereas the European Union applies a 2.7 percent third-country duty rate. This difference highlights the commercial and compliance importance of accurate tariff classification research.